

grounds.<sup>22</sup> In the second, an indictment charging a county tax collector with depriving one Ah Koo of a federally secured right under color of a designated California law, set forth in the indictment, was held insufficient against a demurrer. *United States v. Jackson*, 26 Fed. Cas. 563, No. 15,459 (C. C. D. Cal. 1874). The court wrote:

"The indictment contains no averment that Ah Koo was a foreign miner, and within the provisions of the state law. If this averment be unnecessary . . . the act of congress would then be held to apply to a case of illegal extortion by a tax collector from any person,

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was specifically authorized by local ordinance, although plaintiffs asserted the invalidity of those ordinances under state as well as under federal law. In both cases relief was denied on the ground that no state action was shown, within the rule of *Barney v. New York*, 193 U. S. 430. To this group of cases involving acts authorized by state law must be added *Miller v. Rivers*, 31 F. Supp. 540 (D. C. M. D. Ga. 1940), rev'd as moot, 112 F. 2d 439 (C. A. 5th Cir. 1940), in which a state governor had several times authorized action in violation of state court restraining orders, finally declaring martial law in the face of the state judicial decrees. Two reported criminal prosecutions under § 242 also involved conduct sanctioned by state law. *United States v. Buntin*, 10 F. 730 (C. C. S. D. Ohio 1882); *United States v. Stone*, 188 F. 836 (D. Md. 1911). Cf. *United States v. Horton*, 26 Fed. Cas. 375, No. 15,392 (D. Ala. 1867), *semble*.

<sup>22</sup> *Browner v. Irvin*, 169 F. 964 (C. C. N. D. Ga. 1909). In one case decided in 1940 just prior to *United States v. Classic*, 313 U. S. 299, a Federal District Court did distinctly decide that similar police misconduct unauthorized by state law, was "under color" of state law. *United States v. Sutherland*, 37 F. Supp. 344 (D. C. N. D. Ga. 1940). An unreported 1940 case, *United States v. Cowan* (D. C. E. D. La.), is said to have reached a similar result. See 1941 Atty. Gen. Rep. 98; Brief for the United States, *United States v. Classic*, 313 U. S. 299, p. 45, n. 25. In neither of these two cases does there appear to have been any examination of the legislative history of the "under color" statutes, nor is any reasoning offered to support the conclusion of the courts.